



STATE OF IOWA
KIM REYNOLDS
GOVERNOR

May 19, 2025

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

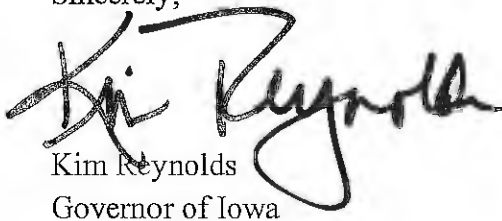
Dear Mr. Secretary,

I hereby transmit:

House File 441, an Act concerning the functions of the employment appeal board; the workers' compensation commissioner; and the department of inspections, appeals, and licensing relating to contested cases, judicial review, and liability.

The above House File is hereby approved on this date.

Sincerely,


Kim Reynolds
Governor of Iowa

cc: Secretary of the Senate
Clerk of the House



House File 441

AN ACT

CONCERNING THE FUNCTIONS OF THE EMPLOYMENT APPEAL BOARD; THE WORKERS' COMPENSATION COMMISSIONER; AND THE DEPARTMENT OF INSPECTIONS, APPEALS, AND LICENSING RELATING TO CONTESTED CASES, JUDICIAL REVIEW, AND LIABILITY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 10A.601, subsections 1 and 7, Code 2025, are amended to read as follows:

1. A full-time employment appeal board is created within the department of inspections, appeals, and licensing to hear and decide contested cases under section 70A.28, chapter 8A, subchapter IV, and chapters 20, 80, 88, 91C, 96, and 97B. In addition, the employment appeal board has those powers and responsibilities assigned to it by chapter 20.

7. An application for rehearing before the appeal board shall be filed pursuant to section 17A.16, unless otherwise provided in section 70A.28, chapter 8A, subchapter IV, or chapter 20, 80, 88, 91C, 96, or 97B. A petition for judicial review of a decision of the appeal board shall be

filed pursuant to section 17A.19. The appeal board may be represented in any such judicial review by an attorney who is a regular salaried employee of the appeal board or who has been designated by the appeal board for that purpose, or at the appeal board's request, by the attorney general. Notwithstanding the petitioner's residency requirement in section 17A.19, subsection 2, a petition for judicial review may be filed in the district court of the county in which the petitioner was last employed or resides, provided that if the petitioner does not reside in this state, the action shall be brought in the district court of Polk county, Iowa, and any other party to the proceeding before the appeal board shall be named in the petition. Notwithstanding the thirty-day requirement in section 17A.19, subsection 6, the appeal board shall, within sixty days after filing of the petition for judicial review or within a longer period of time allowed by the court, transmit to the reviewing court the original or a certified copy of the entire records of a contested case. The appeal board may also certify to the court, questions of law involved in any decision by the appeal board. Petitions for judicial review and the questions so certified shall be given precedence over all other civil cases except cases arising under the workers' compensation law of this state. No bond shall be required for entering an appeal from any final order, judgment, or decree of the district court to the supreme court.

Sec. 2. Section 17A.19, subsection 4, unnumbered paragraph 1, Code 2025, is amended to read as follows:

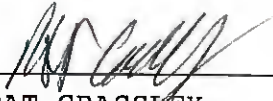
The petition for review shall name the agency as respondent and, except as provided in sections 10A.324 and 20.34. All petitions for review shall contain a concise statement of:

Sec. 3. Section 96.18, Code 2025, is amended to read as follows:

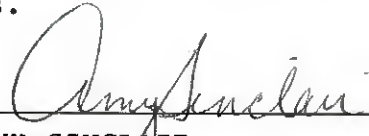
96.18 Nonliability of state.

Benefits shall be deemed to be due and payable under this chapter only to the extent provided in this chapter and to the extent that moneys are available therefor to the credit of the unemployment compensation fund, ~~and neither the.~~ The state; nor the department; the department of inspections, appeals, and

licensing; and the employment appeal board shall not be liable
for any amount in excess of such sums.



PAT GRASSLEY
Speaker of the House

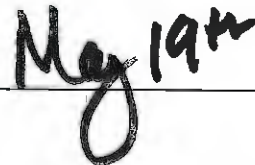


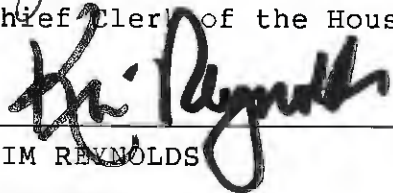
AMY SINCLAIR
President of the Senate

I hereby certify that this bill originated in the House and
is known as House File 441, Ninety-first General Assembly.



MEGHAN NELSON
Chief Clerk of the House

Approved  , 2025



KIM REYNOLDS
Governor